HEADNOTE

> *"An appeal against the denial of provisional measures does generally not justify a stay of revocation proceedings pursuant to Rule 295(m) RoP. Rule 295(m) RoP must be applied and interpreted in accordance with the principle according to which proceedings must be conducted in a way which will normally allow the final oral hearing at first instance to take place within one year."*

COURT
Central Division in Paris

PROCEEDINGS
Action for revocation

PATENT
EP 1 944 067 B1

Method and system for detecting an offside situation

KEYWORDS
stay of revocation proceedings pursuant to ...

Rule 295 Stay of proceedings

SUMMARY
The Central Division in Paris ruled on an action for revocation. The patent at issue relates to a method and system for detecting an offside situation. According to the headnotes of the decision, an appeal against denial of provisional measures does not generally justify a stay of revocation proceedings. Rule 295(m) of the Rules of Procedure must be applied consistently with the principle that proceedings should enable a final oral hearing within one year. This means that procedural efficiency and timely case progression take priority in stay determinations.